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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,**

v.

CSAA Insurance Exchange; and Does 1 through 50,
inclusive;

DEFENDANTS

Case No.: CGC-25-631802

**NOTICE OF LODGING
SUPPLEMENTAL AUTHORITY IN
SUPPORT OF OPPOSITION TO
DEFENDANT'S SPECIAL MOTION TO
STRIKE**

(Code Civ. Proc., §§ 425.16, 425.17(c); Cal. Rules of
Court, rules 3.1113, 3.1306(c))

Anti-SLAPP Hearing:

Date: May 12, 2026

Time: 9:30 a.m.

Dept.: 302

Judge: Hon. Joseph M. Quinn

Complaint filed: Dec. 23, 2025

FAC filed: Feb. 25, 2026

NOTICE OF LODGING

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that Plaintiff Franciscus Dylan Rosario hereby **lodges supplemental authority** in support of Plaintiff's Opposition to Defendant's Special Motion to Strike (Code Civ. Proc., § 425.16), set for hearing **May 12, 2026, 9:30 a.m., Department 302**, Hon. Joseph M. Quinn presiding. The following authorities bear directly on whether the Special Motion to Strike is **categorically unavailable** under (1) the commercial-speech exemption of Code of Civil Procedure section 425.17(c), and (2) the *Flatley v. Mauro* rule that anti-SLAPP relief is unavailable where the assertedly protected conduct is illegal as a matter of law.

I. Authorities Lodged

1. *Simpson Strong-Tie Co. v. Gore* (2010) 49 Cal.4th 12.
2. *JAMS, Inc. v. Superior Court* (2016) 1 Cal.App.5th 984.
3. *Stewart v. Rolling Stone LLC* (2010) 181 Cal.App.4th 664.
4. *Flatley v. Mauro* (2006) 39 Cal.4th 299.
5. *Lefebvre v. Lefebvre* (2011) 199 Cal.App.4th 696.

II. Relevance to the Anti-SLAPP Motion

A. Code Civ. Proc., § 425.17(c) Commercial-Speech Exemption

Code Civ. Proc., § 425.17(c) categorically exempts causes of action against a person *primarily engaged in the business of selling or leasing goods or services* arising from representations of fact *about that person's business operations, goods, or services made for the purpose of obtaining approval for, promoting, or securing commercial transactions in or in the course of delivering* those goods or services. All three *Simpson Strong-Tie* elements are satisfied as to CSAA Insurance Exchange:

1. **Commercial actor.** CSAA is primarily engaged in the business of selling insurance and delivering claim-adjustment services in California. (FAC ¶¶ 10–16.)
2. **Representations about own services.** The statements challenged are representations about CSAA's coverage determinations and claim-handling processes. (FAC ¶¶ 28–58.)

1 3. **In the course of delivering services to a customer.** The statements were made to Plaintiff as
2 the insured / counterparty in the adjustment and communication of claims. (FAC §§ 50–70.)
3 Where all three elements are met, Code Civ. Proc., § 425.17(c) operates as a **categorical bar**.
4 (*Simpson Strong-Tie*, 49 Cal.4th at pp. 21–30; *JAMS*, 1 Cal.App.5th at pp. 992–996.)

5 **B. Flatley Illegality-as-a-Matter-of-Law Bar**

6 *Flatley*: where the defendant concedes, or the evidence conclusively establishes, that the assertedly
7 protected activity is illegal as a matter of law, Code Civ. Proc., § 425.16 relief is unavailable. (39
8 Cal.4th at p. 320.) Plaintiff’s opposition identifies conceded / conclusively established statutory
9 violations in the course of the challenged conduct (discovery-deadline violations admitted in writ-
10 ing; misrepresentations to the Court acknowledged in correspondence), removing the Code Civ.
11 Proc., § 425.16 gateway as to the causes of action arising from that conduct.

12 **III. Procedural Posture**

13 This Notice is not an amendment to any pleading and does not enlarge the opposition record beyond
14 the authorities it identifies. Pursuant to Cal. Rules of Court, rule 3.1113(j) and Cal. Rules of Court,
15 rule 3.1306(c), Plaintiff lodges the supplemental authorities for the Court’s consideration at the
16 May 12, 2026 hearing.

17 **IV. Relief Requested**

18 Plaintiff respectfully requests that the Court (a) accept this Notice of Lodging for the register,
19 (b) consider the lodged authorities in ruling on the Special Motion to Strike, and (c) enter the
20 accompanying short-form order acknowledging lodging.

Dated: April 24, 2026



/s/ Franciscus Dylan Rosario

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Plaintiff, In Pro Per

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